

HOUSE No. 2365

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the civilian certification of military medical personnel.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 2365

By Representative Ayers of Quincy, a petition (accompanied by bill, House, No. 2365) of Bruce J. Ayers relative to the civilian certification of military medical personnel. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2126 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the civilian certification of military medical personnel.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 112 of the General Laws is hereby amended by inserting after section 9K the
2 following section:-

3 Section 9L. (a) For the purposes of this section, "military medical personnel" shall mean
4 an individual who has served as a medic in the United States Army, medical technician in the
5 United States Air Force, corpsman in the United States Navy or health services technician in the
6 United States Coast Guard and who was discharged or released from such service under
7 conditions other than dishonorable. In order to be eligible for participation in the program
8 established pursuant to this section, the military medical personnel shall be: (i) an active-duty
9 transitioning service member, (ii) a veteran, as defined in clause Forty-third of section 7 of

chapter 4, who has been discharged from service no longer than 1 year prior to the date of application to the program, or (iii) a member of the National Guard or Reserve.

(b) Notwithstanding any general or special law to the contrary, the department of veterans' services, in cooperation with the department of public health and the bureau of health professions licensure, shall establish a program through which military medical personnel may practice and perform certain delegated acts that constitute the practice of medicine under the order and supervision of a registered physician in the commonwealth, licensed pursuant to this chapter; provided, that such acts shall reflect the level of training and experience of the military medical personnel and shall be within the scope of services for which the supervising physician can provide adequate supervision to ensure that accepted standards of medical practice are followed. The supervising physician shall retain responsibility for the care of the patient.

(c) Any licensed physician, professional corporation of registered physicians pursuant to chapter 156A, or licensed hospital or clinic may submit an application to the department of public health to be certified as a participating facility in the program pursuant to this section. The department of public health, in cooperation with the bureau of health professions licensure may, at their discretion, approve other facilities, organizations or locations in which military medical personnel may practice medicine under the conditions herein described.

(d) The department of veterans' services, in cooperation with the department of public health and the bureau of health professions licensure, shall establish program requirements for participating military medical personnel, supervising physicians, licensees, and employers, including, but not limited to, special limited registration for participating military medics, and the

- 31 bureau of health professions licensure shall promulgate regulations to implement the program
- 32 pursuant to this section.